

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by TELEFÓNICA DE ESPAÑA, S.A.U. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated February 23, 2024, and based on the following

FACTS

FIRST: On February 23, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202309301, whereby TELEFÓNICA DE ESPAÑA, S.A.U. was imposed:

“FIRST: TO IMPOSE on TELEFÓNICA DE ESPAÑA, S.A.U., with NIF A82018474, for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 90,000.00 euros (NINETY THOUSAND euros).”

Said resolution, which was notified to the appellant on March 4, 2024, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00339/2023, the following was recorded:

“FIRST: On September 12, 2022, and October 10, 2022, TELEFÓNICA, regarding information requested concerning the company SERVIGUIT SERVICIOS 1970, S.L., responds that ‘it understands that, in accordance with applicable regulations, since it is a legal entity that would be outside the scope of application of data protection legislation, the requested information is not provided.’

SECOND: On October 18, 2022, an outgoing request for information was registered for TELEFÓNICA to provide the signed authorization of the claimant for the direct debit of bank receipts in their account number. On October 31, 2022, TELEFÓNICA responds to said request that ‘it understands that, in accordance with applicable regulations, since it is a legal entity that would be outside the scope of application of data protection legislation, the requested information is not provided.’

THIRD: On May 11, 2023, TELEFÓNICA was requested to provide information on whether SERVIGUIT SERVICIOS 1970, S.L. provided the account number belonging to the claimant for the direct debit of their telephone line payments, at the time of registration or at any later time. On May 23, 2023, TELEFÓNICA responds to said request that ‘once our systems were reviewed, the company SERVIGUIT SERVICIOS 1970, S.L. had associated the bank account XXXX XXXX XX XXXXXXXXXXXX for the domicile of its receipts from C/ ***ADDRESS.1 www.aepd.es 28001 – Madrid sedeagpd.gob.es Verification Code XXXXXXXXXXXXXXXXXXXXXXXXXXXX Date 23/02/2024 Regulation This report has the character of an authentic electronic copy with validity and administrative effectiveness of ORIGINAL (art. 27 Law 39/2015). Signed By the Director - Mar España Martí Verification URL ***URL.1 Page 18/35 19/35 Telefónica between the registration date for the service, October 19, 2021, and February 10, 2022, at which point it was modified for a new bank account.’

FOURTH: On May 24, 2023, TELEFÓNICA was requested to confirm whether SERVIGUIT SERVICIOS 1970, S.L. requested the service registration and whether SERVIGUIT SERVICIOS 1970, S.L. provided the account number belonging to the claimant for the direct debit of their telephone line payments. This request was reiterated on June 7, 2023. On June 19, 2023, TELEFÓNICA responds to the request stating that SERVIGUIT SERVICIOS 1970, S.L. requested the service registration and that it had associated the bank account belonging to the claimant for the domicile of its TELEFÓNICA receipts between the registration date for the service, October 19, 2021, and February 10, 2022, at which point it was modified for a new bank account.

FIFTH: Regarding the requested information, TELEFÓNICA has not confirmed whether SERVIGUIT SERVICIOS 1970, S.L. provided or did not provide the account number belonging to the claimant for the direct debit of their telephone line payments.

SIXTH: The notification of the agreement to initiate the present sanctioning procedure was received by TELEFÓNICA on July 31, 2023.

SEVENTH: TELEFÓNICA has submitted allegations to the initiation agreement of this sanctioning procedure recorded in the eighteenth antecedent.

EIGHTH: The notification of the proposed resolution of the present sanctioning procedure was received by TELEFÓNICA on October 9, 2023.

NINTH: TELEFÓNICA has submitted allegations to the proposed resolution of this sanctioning procedure recorded in the twentieth antecedent."

THIRD: The appellant submitted on March 27, 2024, to this Spanish Agency for Data Protection, a recourse for reconsideration.

The appellant states that at no time has it obstructed or hindered the inspection work of the Agency and has at all times facilitated the information requested according to what it could provide.

Furthermore, the appellant indicates that, pursuant to art. 52.3 of the LPDGDD, all public administrations are obliged to motivate the acts for which they request information, and that the principle of typification and motivation of the

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administrative acts, the present appeal for reconsideration should be upheld and the sanctioning Resolution declared null and void for violating the provisions established in articles 47.1 a) and e) and 47.2 of the LPACAP.

The appellant insists that, in their opinion, there were reasonable doubts regarding the legitimacy of the data requested by the Agency since they believe that the request for data concerning a legal entity fell outside the scope of the GDPR and beyond the powers attributed to the Agency by article 58, and at no time, they say, did the Agency justify why it required such information, beyond making a generic reference to article 58.1 of the GDPR. In this regard, the respondent again argues, after citing paragraphs a) and e) of said article 58, that the functions of this Agency are restricted, according to article 57 of the GDPR, to "monitoring the application of this Regulation," the object of which is established in article 1 of the GDPR.

The appellant reiterates that this Agency was requesting information about a bank account that is known to be associated with a legal entity and that, therefore, in no case can it be linked to a third-party claimant, since they are not a client of the operator. Therefore, they consider that this bank account does not constitute personal data for the purposes of the GDPR as it cannot be attributed to a natural person, all of which takes into account the relevant case law whose details are in the file and which is reproduced again in this appeal.

The appellant notes that when this Agency requested their "collaboration" seven months after the initial requests for information, despite maintaining their initial thesis that, in their opinion, the Agency lacks the authority to request such information as it falls outside the scope of data protection if it does not properly justify the administrative act by which it requests the information, they provided "all the information that can be provided and that perfectly fits what was requested by the Agency," being unable to respond with a "yes" or "no," as seems to be the intention of this Agency, because they could not locate the initial contract signed by the company in question.

The appellant repeats that they do not agree with the reproach regarding not having indicated until the allegations phase in the sanctioning procedure that they did not have the initial contract, and that this resulted in a delay that led to the filing of the investigation proceedings of EXP202205067, since, they say, at no time were they requested to provide the said contract and that, they add, this Agency could have requested the information directly from the company in question, in addition to which, they continue, they have responded at all times to what has been requested in a timely manner and that they are not responsible for the instruction of the procedure, which corresponds exclusively to this Agency, being the Administration's obligation to promote it.

In conclusion, the appellant considers that they responded to the requests for information and that in no case have they obstructed or failed to provide information to this Agency to carry out its inspection duties, so the present sanctioning file should be archived.

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Furthermore, the appellant states that, in accordance with the provisions of Article 112.1 of the LPACAP, it is legitimized to file the present Recurso de Reposición since, being a party, the administrative act directly affects its subjective rights.

The appellant also expresses that the principle of typicity is being violated, given that its conduct, it claims, "cannot be subsumed under any of the provisions whose infringement is imputed."

Let us recall that the Agency imputes to Telefónica the infringement classified in Article 83.5.e) of the RGPD, consisting of "failing to provide access in violation of Article 58, paragraph 1," and qualified as very serious based on the alleged following behaviors of Article 72.1 of the LOPDGDD:"

After reproducing letters ñ) and o) of Article 72.1 of the LOPDGDD, emphasizing in that text the words "facilitate" and "resistance or obstruction," the appellant transcribes the definitions from the Royal Spanish Academy of Language for the words facilitate, resist, and obstruct to argue that "if we refer to the following definitions from the Royal Spanish Academy of Language, the conduct followed by Telefónica cannot be subsumed under the provision that is imputed to it."

The appellant insists that it has provided the information it had, and therefore, it states, it has neither resisted (not opposed strongly to something) nor has it impeded anything. On the contrary, it claims, it has collaborated and facilitated the information required by this Agency at all times, insisting that it acted according to the information it had and providing reasons for not providing the information regarding the legal entity.

The appellant points out that this Agency at no time motivated the administrative act for which it was requesting the information, beyond making a general reference to the powers attributed to it by Article 58.1 of the RGPD. This attitude, in the opinion of the appellant, "goes against both Article 35 of Law 39/2015 and Article 52.3 of the LPDGDD, whereby every act of the Agency related to a request for information must be properly motivated."

As established by the Third Chamber of the Administrative Litigation of the Supreme Court, on January 30, 2001, the motivation of administrative acts consists of "a reasoning or an explanation or a rational expression of the judgment, after establishing the facts from which it starts and after including them in a legal norm."

On the other hand, Judgment 713/2020 of the Third Chamber of the Administrative Litigation of the Supreme Court, issued on June 9, 2020, states that the motivation of administrative acts is necessary for:

1. "it constitutes an essential requirement in every administrative act insofar as it implies the externalization of the reasons that serve as justification or foundation for the specific legal solution adopted by the Administration."

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2. This is a "requirement, mandatory within the specific framework in which we operate as stipulated by Article 35 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations and the Common Administrative Procedure."

3. And regarding the defense of the administered party, "it is of special relevance from the perspective of the defense of the administered party since it is the explicit statement or externalization of the reasons for the administrative decision that allows them to articulate the specific means and defensive arguments that are of interest to their rights and, moreover, allows the Courts to carry out the appropriate judicial control."

The appealing party believes that, considering the above, what is indicated in Legal Basis III of the Resolution being appealed regarding the response to the allegations to the proposed resolution would be contrary to law. Thus, the appealing party considers it the Agency's duty to justify the act for which it requests the information, as failing to do so could imply arbitrariness on the part of the public Administration, which could be requesting data, it says, without having legitimacy for it. The need for

justification is necessary, it says, to avoid what is known as abuse of power.

The appealing party asserts that its conduct cannot be considered unlawful either, since it justified why it did not provide the information about the legal entity initially and later, when this Agency indicated for what it was requesting collaboration, it provided the information that was in its systems. Thus, it believes it acted at all times with will and good faith.

The appealing party argues that, even if the action were considered typical and unlawful, it could not be deemed culpable, given the absence of intent, it says, in not providing the information or in obstructing inspection tasks.

In this regard, the appealing party believes that its attitude reveals an unequivocal will to act in accordance with the law, with no intention whatsoever to infringe the norm and having, in any case, the will to comply. It acted, it says, at all times with the caution of not providing information that could be considered illegitimate, so that this Agency could justify its request, and afterwards, the information that was in its systems was provided.

The appealing party points out that it cannot be reproached "for causing the process to be prolonged in order to influence the filing of actions in file EXP202205067, due to the expiration of the deadlines stipulated in the LPDGDD without obtaining results, and this for two reasons:

(i) because it is the Administration's obligation, once an administrative procedure has been initiated, to carry out the necessary activity for it to reach a successful conclusion, thereby promoting the procedure

(ii) because it is notorious and evident that, despite this party justifying its refusal to provide certain information related to the legal entity, seven months of inactivity passed between the initial information requests and the subsequent ones.

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Therefore, the expiration of the procedure cannot, in any case, be attributed to Telefónica.

Regarding the element of culpability, the appellant insists that the guiding principles of criminal law are applicable to administrative sanctioning law, referring to the same legislation and jurisprudence that is part of the file.

Additionally, the appellant considers that this Agency does not justify the calculation of the amount of the sanction, which it argues again with the same references found in the file to the Judgment of the High Court of Justice of Madrid, dated March 29, 2012, and to the Judgment of the High Court of Justice of Valencia dated September 15, 2011. It opines that the sanctioning Resolution lacks justification and is arbitrary, as it states that it does not indicate the criteria followed to determine the amount of the final sanction, and why the aggravating factor discarded only accounts for 10% of the total of the initially proposed sanction, thus it should be declared null and void.

Finally, if the Director of this Agency does not declare the nullity of the contested resolution for all the reasons alleged, the appellant expresses its disagreement with the fact that the specific circumstances in which this file has developed have not been taken into account for the imposition of the sanction, and that none of the mitigating circumstances mentioned in the allegations made throughout the sanctioning procedure have been considered, which it deems a violation of the principle of proportionality in the imposition of sanctions. In this regard, it again points to the legislation and jurisprudence already alleged in the sanctioning procedure.

The appellant, reproducing the legislation and jurisprudence already alleged in the sanctioning procedure, states that, in its opinion, the sanctioning Resolution shows a clear violation of the principle of proportionality. This violation, it says, "materializes in the intention to impose on Telefónica a financial sanction that is entirely ineffective and disproportionate, especially considering the continuous collaboration that Telefónica has with the Agency."

In this specific case, let us remember that Telefónica is sanctioned with an amount of 90,000 euros for failing to provide the Agency with certain information from a third party in a specific case. That is to say, we are talking about a single case out of all those that Telefónica receives annually and that the

Agency is aware of.

In our opinion, a written warning could have been adopted by the Agency rather than a financial sanction, which would fall within the judgment of proportionality, while being an effective and deterrent measure, especially considering the last resort nature of the sanctioning procedure.

If a financial sanction is deemed appropriate, the appellant believes that in any case the following mitigating factors should be taken into account for the following reasons:

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“1. The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages they have suffered:”

The appellant considers that “if we take into account the reasoning of the Agency for not recognizing the aggravating factor related to the massive processing of personal data, we should not disregard these mitigating factors either.

To do otherwise would contradict the criteria established in the Judgment of the High Court of Justice of Madrid, dated March 29, 2012, which recalls that the Supreme Court (judgment of March 7, 1996) establishes that:

“the discretion granted to the Administration in the imposition of sanctions, within the legally established limits, must be exercised by weighing all the concurrent circumstances, in order to achieve the necessary and due proportion between the facts attributed and the responsibility required, given that every sanction must be determined in congruence with the seriousness of the infringement committed and according to a criterion of proportionality that constitutes a normative principle imposed as a further precept on the Administration and that reduces the scope of its sanctioning powers, since it is the jurisdictional sphere that is responsible not only for qualifying the conduct to subsume it under the legal type but also, for parallel reasons, for adjusting the sanction to the act committed, as in both cases the issue is the application of evaluative criteria in the written norm or inferable from integrative principles of the legal system.”

2. The degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement:

Telefónica collaborates with the Agency annually in multiple and continuous requests for information, which should be taken into account in the present sanctioning file. We consider that the final amount sanctioned is completely disproportionate when considering the continuous collaboration that Telefónica provides to the Agency.

3. Adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42:

The Agency indicates that the application of this mitigating factor is not possible on the grounds that “for adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42 to be used as a mitigating factor, it must be directly relevant to the infringement, which, as already stated in the previous Foundation, does not occur in the present procedure.”

In response to this argument, it should be noted again that Article 83.2 of the GDPR does not state that the infringement committed must be related to the scope of application of the relevant Code of Conduct. This interpretation made by the Agency implies an additional specific formality not contemplated in the current regulations, thus contravening the very spirit of the GDPR.

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4. Any other aggravating or mitigating factor applicable to the circumstances of the case, such as the

financial benefits obtained or the losses avoided, directly or indirectly, through the infringement. The Agency indicates in the Resolution that this has not been considered for mere aggravating effects. In the opinion of this party, this reasoning would go against Article 83.2 of the GDPR, which specifies that all the mentioned cases can be taken into consideration as “mitigating” or “aggravating,” and not only as the latter. That is to say, the norm establishes through the conjunction “or” that one can choose between one reality or the other. Therefore, that the non-obtainment of benefits is taken only as an aggravating circumstance would contravene the principle of legality by not correctly applying the current regulations.

In summary, and for the above reasons, the proposed sanction is arbitrary and completely disproportionate, so that, in the event that the file is not archived, it should be modified to a written warning or the proposed amount should be reduced.”

For all the above, the appellant requests that the present Recurso de Reposición be upheld, revoking the sanctioning act and declaring the nullity of the imposed sanction.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of the LOPDGDD.

II

Response to the allegations presented

In relation to the statements made by the appellant, for the most part, they reiterate the allegations already presented throughout the sanctioning procedure, which were already analyzed and dismissed in the Legal Grounds second and third of the contested Resolution, as transcribed below.

“II

Allegations to the initiation agreement

In response to the allegations presented by the defendant party, the following should be noted.

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Firstly, regarding TELEFÓNICA's assertion that not all information requests made to it were based on the investigative powers granted to the Agency under Article 58 of the GDPR, since in some cases its "collaboration" was requested, it should be noted that in the requests sent to which it refers in its allegations, the following is stated:

“In the framework of the actions carried out by the General Subdirectorate of Data Inspection in order to clarify certain facts of which this Spanish Agency for Data Protection has become aware, and in exercise of the powers conferred by Article 58.1 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter GDPR), and Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), (...)

Collaboration is requested on your part in order to confirm the involvement of the company SERVIGUIT SERVICIOS 1970, S.L.”

Therefore, contrary to what TELEFÓNICA stated, it was expressly indicated that these were information requests based on the investigative powers granted to the Agency under Article 58 of the GDPR.

Secondly, regarding TELEFÓNICA's statement that the request for data about a legal entity would be outside the scope of the GDPR and outside the competencies attributed to this Agency by Article 58, the literal wording of paragraphs a) and e) of Article 58.1 of the GDPR is recalled, with the emphasis of this Agency:

“a) order the controller and the processor and, where appropriate, the representative of the controller or the processor, to provide any information required for the performance of its functions;
e) obtain from the controller and the processor access to all personal data and all information necessary for the exercise of its functions;”

Thirdly, concerning TELEFÓNICA's statement that it has never obstructed or failed to provide information to this Agency to carry out its inspection duties, since it always submitted the requested information that it could provide, it is noted, on the one hand, that TELEFÓNICA responded to the requests of this Agency stating that “in accordance with applicable regulations, as it concerns a legal entity that would be outside the scope of data protection legislation, the requested information is not provided.”

On the other hand, this Agency requested TELEFÓNICA to provide the signed authorization from the complainant for the direct debit of bank receipts in their account number, and to provide information on whether SERVIGUIT SERVICIOS 1970, S.L. provided the account number belonging to the complainant for

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to set up direct debits for their telephone line, at the time of registration or at any later time, and to confirm whether SERVIGUIT SERVICIOS 1970, S.L. provided the account number belonging to the claimant for the direct debits of their telephone line.

The response received to these requests was that SERVIGUIT SERVICIOS 1970, S.L. had associated the bank account belonging to the claimant for the payment of their TELEFÓNICA bills between the date of registration for the service, October 19, 2021, and February 10, 2022, at which point it was changed to a new bank account.

In conclusion, TELEFÓNICA has not confirmed whether SERVIGUIT SERVICIOS 1970, S.L. provided the account number belonging to the claimant for the direct debits of their telephone line.

Furthermore, until the submission of the allegations to the Agreement initiating the present sanctioning procedure, TELEFÓNICA did not justify its inability to provide an adequate response to the information requests from this Agency due to the inability to locate the initial contract signed by SERVIGUIT SERVICIOS 1970, S.L.; on the contrary, the lack of response occurred unjustifiably. As indicated, it received at least three requests highlighting that the information provided was insufficient and incomplete, reiterating the request for its provision. Within the obligation to supply all necessary information is the duty to provide complete answers with all necessary explanations. The conduct displayed by TELEFÓNICA has hindered the actions of this Agency, causing harm to the inspection function, preventing it from proceeding along the most appropriate path to determine the relevant circumstances of the alleged infringement. The delay caused by the reiteration of requests and their corresponding incomplete responses decisively influenced the filing of the investigation proceedings of case EXP202205067, consuming the expiration periods provided for in the LOPDGDD without obtaining results.

Fourthly, regarding the absence of culpability alleged by TELEFÓNICA, it should be noted that, due to the high volume of data processing it manages, it should have robust procedures in place to comply with the obligations set forth in data protection regulations, including responding adequately to the requests of the supervisory authority within the time frame granted for that purpose.

Certainly, the principle of responsibility provided in Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, states: “Only individuals and legal entities, as well as, when a Law recognizes their capacity to act, groups of affected individuals, unions and entities without legal personality, and independent or autonomous assets, may be sanctioned for acts constituting administrative infractions, provided they are responsible for them by intent or negligence.”

However, according to the ruling in STS 7887/2011 of November 24, 2011, Rec. 258/2009, “(...) since its ruling 76/1990, of April 26, the Court

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The Constitutional Court has declared that objective or no-fault liability does not fall within the scope of administrative sanctions, a doctrine reaffirmed in ruling 164/2005, dated June 20, 2005, which excludes the possibility of imposing sanctions solely based on the outcome, without demonstrating a minimum level of culpability, even in terms of mere negligence. However, the manner of attributing liability to legal entities does not correspond to the forms of intentional or negligent culpability that are attributable to human conduct.

Thus, in the case of violations committed by legal entities, although the element of culpability must be present (see the ruling of this Chamber of the Supreme Court dated November 20, 2011 (appeal for cassation in the interest of law 48/2007)), it is necessarily applied differently than it is with natural persons. According to STC 246/1991 "(...) this distinct construction of the attribution of authorship of the infringement to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject. The capacity to infringe and, therefore, direct reproachability that derives from the legal interest protected by the norm that is infringed and the necessity for that protection to be genuinely effective, and the risk that, consequently, must be assumed by the legal entity that is subject to compliance with that norm."

To the above, it should be added, following the ruling of January 23, 1998, partially transcribed in STS 6262/2009, dated October 9, 2009, Rec 5285/2005, and STS 6336/2009, dated October 23, 2009, Rec 1067/2006, that "although the culpability of the conduct must also be subject to proof, it must be considered in terms of the assumption of the corresponding burden, that ordinarily the volitional and cognitive elements necessary to appreciate it form part of the proven typical conduct, and that their exclusion requires evidence of the absence of such elements, or in its normative aspect, that due diligence has been exercised by the party claiming its non-existence; in summary, the mere invocation of the absence of fault is not sufficient for exculpation against a typically unlawful behavior."

Furthermore, it is worth considering the provisions in the fourth foundation of the resolution of file EXP202205067, which concludes as follows:

"During the preliminary investigation proceedings, information regarding this matter has been repeatedly requested from the telecommunications operator TELEFÓNICA DE ESPAÑA S.A., which has not provided all the required information regarding whether the claimed party was the one that at the time would have provided the claimant's account number. Without prejudice to the responsibility that may correspond to this company, this has resulted in a lack of information about who and through what means the direct debit was made. Additionally, TELEFÓNICA DE ESPAÑA informs that the claiming party had been a previous customer.

For its part, the claimed party also repeatedly denies having made the direct debit. This, combined with the lack of sufficient information regarding the conditions under which said direct debit would have occurred, creates a reasonable doubt about the commission of an infringement by the claimed party."

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Therefore, the lack of culpability is dismissed since TELEFÓNICA did not respond adequately to the requests made by this Agency prior to the initiation of the present sanctioning procedure against it, which significantly influenced the resolution to archive file EXP202205067, thus calling into question the diligence employed.

Fifthly, TELEFÓNICA expresses its disagreement with the aggravating factor included in the Initiation Agreement regarding "the evident link between the business activity of the defendant and the processing of personal data of clients or third parties (Article 83.2.k of the GDPR in relation to Article 76.2.b of the LOPDGD), "arguing that this aggravating factor would always apply, without considering that it is a specific and exceptional case and, furthermore, the requirement of intentionality or negligence in the infringement of Article 83.2 b) GDPR would not be met.

In this regard, it should be noted that this case does not involve a specific error or an isolated mistake

that would alone give rise to liability without any intent or fault on the part of TELEFÓNICA. Denying the occurrence of negligent conduct by TELEFÓNICA would be equivalent to acknowledging that its behavior—by action or omission—has been diligent.

Obviously, this perspective of the facts is not shared, as the lack of due diligence has been established. A large company that routinely processes personal data of its clients, such as TELEFÓNICA, must exercise utmost care in fulfilling its obligations regarding data protection, as established by jurisprudence.

Sixthly, TELEFÓNICA claims that the existence of clear procedures, its collaboration with this Agency, and the absence of negligence or recklessness should be considered as mitigating factors. It also reiterates the arguments previously made regarding sections a) and f) of Article 83.2 of the GDPR. In addition to what has already been rebutted regarding these allegations, it is pointed out that Article 5.2 of the GDPR establishes the principle of proactive responsibility when it states that "The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it." This principle refers to the obligation that falls on the data controller not only to design, implement, and observe the appropriate legal, technical, and organizational measures to ensure that data processing is in accordance with the regulations but also to remain actively attentive throughout the entire lifecycle of the processing to ensure that such compliance is correct, and to be able to demonstrate it. Therefore, what is a duty of the data controller cannot be argued as a mitigating factor. Seventhly, TELEFÓNICA indicates that sections j) and k) of Article 83.2 of the GDPR should be considered as mitigating factors. Specifically, that they have subscribed to the Self-Regulation Code of Conduct and that no benefit has been obtained from the commission of the alleged infringement. Regarding the Code of Conduct, it cannot be considered as a mitigating factor since the protocol signed with Autocontrol, without prejudice to the own competencies...

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of the AEPD, provides mechanisms for the private resolution of disputes related to data protection in the context of contracting and advertising electronic communications services, a fact that has nothing to do with the infringement being processed in this procedure.

Likewise, the absence of benefits cannot be considered a mitigating factor in accordance with the Judgment of the AN, dated 05/05/2021, rec. 1437/2020, which states: "On the other hand, it should be appreciated as a mitigating factor the non-commission of a previous infringement. Well, Article 83.2 of the GDPR establishes that for the imposition of the administrative fine, among others, the circumstance 'e) any previous infringement committed by the controller or the processor' must be taken into account. This is an aggravating circumstance; the fact that the prerequisites for its application do not exist means that it cannot be taken into consideration, but it does not imply or allow, as the claimant intends, its application as a mitigating factor"; applied to the case under review, the lack of the prerequisite for its application regarding Article 76.2.c) of the LOPDGDD, that is, obtaining benefits as a consequence of the infringement, does not allow its application as a mitigating factor. This criterion of graduation is established in the LOPDGDD in accordance with the provisions of Article 83.2.k) of the GDPR, according to which administrative fines will be imposed taking into account any "aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement," understanding that avoiding a loss has the same nature for these purposes as obtaining benefits.

If we add to this that the sanctions must be "in each individual case" effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR, admitting the absence of benefits as a mitigating factor is not only contrary to the factual prerequisites contemplated in Article 76.2.c), but also contrary to what is established in Article 83.2.k) of the GDPR and to the principles indicated.

Thus, valuing the absence of benefits as a mitigating factor would nullify the dissuasive effect of the fine, to the extent that it diminishes the effect of the circumstances that effectively influence its

quantification, providing the controller with a benefit to which they are not entitled. It would be an artificial reduction of the sanction that could lead to the understanding that infringing the norm without obtaining benefits, financial or otherwise, will not produce a negative effect proportional to the seriousness of the infringing act.

In any case, the administrative fines established in the GDPR, in accordance with what is established in its Article 83.2, are imposed based on the circumstances of each individual case and it is not considered that the absence of benefits is an adequate and determining graduation factor to assess the seriousness of the infringing conduct. Only in the case that this absence of benefits is relevant to determine the degree of unlawfulness and culpability present in the specific infringing action may it be considered as a mitigating factor, in application of Article 83.2.k) of the GDPR, which refers to “any other aggravating or mitigating factor applicable to the circumstances of the case.”

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Lastly, TELEFÓNICA considers that the calculation of the amount of the sanction is not justified and that it is arbitrary, as the criteria followed to determine the amount of the sanction have not been detailed.

The requirement for motivation of administrative acts, as noted among others by the Supreme Court ruling of November 19, 2001 (Rec. 6690/2000), has its constitutional basis in the principle of legality established in Article 103 of the Spanish Constitution (CE), as well as in the effectiveness of judicial control over the actions of the Administration recognized in Article 106 CE. Legally, Article 35.1 of Law 39/2015, on the Common Administrative Procedure of Public Administrations, is the provision that specifies the acts that must be motivated.

This requirement responds, according to reiterated jurisprudential doctrine, exemplified by the Supreme Court ruling of July 16, 2001 (Rec. 92/1994), to the purpose of allowing the interested party to know the when, how, and why of what is established by the Administration, with the necessary breadth for the defense of their rights and interests, also allowing the judicial bodies to know the factual and normative data that enable them to resolve the judicial challenge of the act, in the exercise of their review and control of administrative activity; so that the lack of such motivation or its notable insufficiency, to the extent that they prevent challenging that act with a serious possibility of critiquing the bases and criteria on which it is founded, constitutes a defect of annulability, as it leaves the interested party in a situation of defenselessness.

Motivation of administrative acts, which, as noted by the Supreme Court ruling of March 29, 2012 (Rec. 2940/2010, among others), does not require any exhaustive and detailed reasoning, must express the reasons that allow knowing the essential criteria underpinning the decision “facilitating the interested parties the necessary knowledge to assess the legal correctness or incorrectness of the act for the purposes of exercising the actions of challenge that the legal system establishes and adequately articulating their means of defense.”

Well, in the present procedure, the lack of motivation cannot be appreciated. A different issue is that TELEFÓNICA legitimately disagrees with this argumentation, but this does not imply the non-existence of sufficient motivation, so neither defenselessness nor arbitrariness in the determination of the amount of the sanction can be appreciated.

For all these reasons, it is not possible to grant TELEFÓNICA's request regarding the non-existence of liability and the filing of the present sanctioning file, nor to reduce the sanction initially proposed by virtue of the mitigating circumstances indicated.

III

Allegations to the Proposal for Resolution

In response to the allegations against the Proposal for Resolution of the present file presented by TELEFÓNICA, the following should be noted.

The allegations presented against the Proposal for Resolution of this file largely reproduce the same arguments made against the Agreement of C/ Jorge Juan, 6

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beginning and, therefore, have already been addressed by this Agency in the previous Legal Basis, to which reference is now made, except for what has been added, completed, or clarified below.

First, it is recalled that, within the framework of file EXP202205067, this Agency agreed to carry out investigative actions regarding the charges received in the bank account of the claiming party related to invoices issued by TELEFÓNICA for services charged to the company SERVIGUIT SERVICIOS 1970, S.L. These actions investigated the possible unlawful processing of personal data of the claiming party. During these actions, TELEFÓNICA was repeatedly requested to confirm whether SERVIGUIT SERVICIOS 1970, S.L. provided or did not provide the account number belonging to the claiming party that TELEFÓNICA used to direct debit the payments for their telephone line, a fact that was necessary to determine in order to clarify responsibility for the possible infringements of the regulations being investigated. The delays caused by the reiteration of requests and their corresponding incomplete responses decisively influenced the filing of the investigative actions of file EXP202205067 as motivated in its resolution and as extracted in the previous basis, consuming the limitation periods provided for in the LOPDGDD without obtaining results. Furthermore, it should be noted that the lack of response occurred unjustifiably until the phase of allegations to the Agreement to initiate the present sanctioning procedure, at which point TELEFÓNICA did allege that it could not provide the requested information due to not having the initial contract signed by the entity. Regarding TELEFÓNICA's assertion that it considered the request made by this Agency to be outside the scope of its competence, given that it concerned information of a legal entity, in addition to what has already been stated, it should be added, on the one hand, that it is not for TELEFÓNICA to interpret the requests of this Agency, but rather to comply with its obligation to duly respond by providing the requested information.

On the other hand, no information was being requested whose provision would incur any type of illegality, but rather the opposite; their lack of response would constitute an infringement within the framework of the powers of the Spanish Agency for Data Protection, as they are warned in the request itself that failure to attend to it could lead to the commission of an infringement of the GDPR.

Moreover, this Agency does not have to explain why it needs or does not need the information, and whether this “can link to the third-party claimant, since they were not a customer of the operator,” as TELEFÓNICA claims, since the contrary could frustrate the investigation, in addition to the confidentiality that the AEPD must maintain in this regard in the exercise of its inspection functions. Additionally, TELEFÓNICA insists that this Agency lacks the competence to request the required information as it falls outside the scope of data protection, arguing that the powers set out in Article 58 of the GDPR are restricted to the functions of Article 57 of the GDPR and specifically cites the function of “monitoring the application of this Regulation,” according to Article 57.1.a).

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to recall the provisions of section h) of the same article 57.1, which includes the function of “conducting investigations into the application of this Regulation,” as well as the fact that information was requested from TELEFÓNICA within the framework of the investigative actions of file number EXP202205067.

In this regard, it is clarified that the investigative actions of the aforementioned file are initiated to clarify the circumstances pertinent to the complaint received, in which the alleged infringement of various articles of the GDPR in the processing of the bank account number of the individual complainant is highlighted. Such processing falls within the material scope of the GDPR, as it involves the total or partial automated processing of personal data, or the non-automated processing of personal data contained in or intended to be included in a file.

Regarding the argument that in this case the bank account would not fall within the definition of personal data as defined by article 4 of the GDPR because the individual is not identifiable to TELEFÓNICA, the National Court has had no doubt in affirming that the bank account is a piece of personal data in the Judgment of the First Section of the Administrative Litigation Chamber of the National Court dated November 3, 2015, rec. 333/2014.

It thus reflects the established doctrine of the Court in its Second Legal Basis in the following terms (the underlining is ours):

“Consequently, the plaintiff alleges a lack of typicity, since article 4.3 of the LOPD is not infringed, given that the bank account number does not constitute personal data. It adds that this data does not allow for the identification of its holder unless it is associated with their name and surname, and that the invoices only contained the twenty digits of the complainant's bank account but not their name. (...) Contrary to what the plaintiff has asserted, it is undeniable that the bank account number of an individual constitutes personal data, as the Chamber has repeatedly understood (see, among others, judgment of January 30, 2014, appeal 554/2012), under the concept of personal data provided by article 3.a) of the LOPD, defined as “any information concerning identified or identifiable individuals.” To which article 5.1.f) of Royal Decree 1720/2007, of December 21, which approves the Development Regulation of the LOPD (RLOPD), adds that personal data constitutes “any numerical, alphabetical, graphic, photographic, acoustic, or any other type of information concerning identified or identifiable individuals,” in clear alignment with article 2.a) of Directive 95/46/EC of the Parliament and the Council, of October 24, 1995, regarding the Protection of Individuals with regard to the processing of personal data and the free movement of such data.

Although the LOPD does not define what is to be understood as identifiable individual, this concept is delineated in Directive 95/46/EC, of the Parliament and the Council, of October 24, 1995, regarding the Protection of Individuals with regard to the processing of personal data and the free movement of such data, whose article 2.a) states that any person whose identity can be determined, directly or indirectly, particularly by means of an identification number or one or more specific elements, characteristic of their identity, shall be considered identifiable.

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physical, physiological, psychological. Likewise, Recital 26) of the aforementioned directive indicates that to determine whether a person is identifiable, one must consider the set of means that may reasonably be used by the data controller, or by any other person, to identify the data subject.

In this regard, Article 5.1, paragraph o) of the RLOPD defines “identifiable person” as “any person whose identity can be determined directly or indirectly, through any information related to their physical, physiological, psychological, economic, cultural, or social identity. A natural person shall not be considered identifiable if such identification requires disproportionate time or activities.”

In the case at hand, the data from the bank account has identified the complainant who suffered several charges on the bank account in their ownership, being identified both by the bank, which receives such personal data from the complainant for the collection of an invoice, and by the charges made on the aforementioned account, without the complainant having authorized such collection.

Therefore, the processing of the bank account data for the collection of a specific invoice, through its incorporation into the files of the complainant and subsequently to such invoice, and through its submission to the corresponding banking entity for collection from such account, constitutes processing of personal data, as it allows for the effortless identification of the person holding the aforementioned data, the complainant, as has occurred here.

The assertion made is not undermined by the fact that the name and surname or the ID number of the complainant were not included in the invoices issued and the receipts directed to the banking entity, as this does not deprive the bank account data of being considered personal data of the complainant, which is why it falls within the scope of application of the LOPD, according to Article 2 thereof.

Undoubtedly, therefore, the bank account number is a data associated with the identity of a specific,

perfectly identifiable person, its holder, and must be considered personal data for the purposes of applying the Organic Law on Data Protection.

It is also reiterated that Article 58. a) and e) of the GDPR empowers this Agency to “order the data controller and the data processor and, where appropriate, the representative of the controller or the processor, to provide any information required for the performance of their functions” and to “obtain from the controller and the processor access to all personal data and all information necessary for the exercise of their functions.” Therefore, ultimately, whether the bank account is or is not personal data for the investigated party is irrelevant for determining the infringement for which this sanctioning procedure is being conducted.

Regarding TELEFÓNICA's explanation that it did not indicate until the phase of allegations to the initiation Agreement of this sanctioning procedure that it did not have the initial contract because it had not been requested to provide it, and therefore could not be held responsible for a delay that resulted in the filing of the proceedings.

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In the investigation of EXP202205067, it is evident that the delay was not due to the failure to provide said contract but rather because TELEFÓNICA did not justify prior to the initiation of the present sanctioning procedure that it could not adequately respond to the information requests from this Agency, as developed in the response to the allegations regarding the initiation agreement.

On the other hand, TELEFÓNICA states that the principle of legality is being violated, given that its conduct cannot be subsumed under any of the provisions whose infringement is attributed. However, the typical fact is that referred to from the initiation agreement, consisting of failing to provide the requested information in response to the information requests received. As noted in the section on Established Facts, TELEFÓNICA has responded on three occasions to this Agency that it "understands that, in accordance with applicable regulations, as it is a legal entity that would be outside the scope of application of data protection legislation, the requested information is not provided." Subsequently, TELEFÓNICA responded to two other requests stating that SERVIGUIT SERVICIOS 1970, S.L. requested the activation of the service and that it had associated the bank account belonging to the claimant for the billing address of its TELEFÓNICA receipts between the activation date of the service, October 19, 2021, and February 10, 2022, at which point it was modified to a new bank account. Thus, in none of them does TELEFÓNICA provide the information requested: whether SERVIGUIT SERVICIOS 1970, S.L. provided or did not provide the account number belonging to the claimant for the direct debit of payments for its telephone line. If TELEFÓNICA had responded completely, this Agency would not have had to reiterate its information requests and could have pursued other lines of investigation to obtain the information it needed.

It is noted that TELEFÓNICA claimed it could not provide the requested information because it "could not locate the initial contract signed by the company in question" after the resolution to archive the proceedings of EXP202205067.

Regarding the alleged violation of the principle of proportionality raised by TELEFÓNICA, this Agency takes into account, it says, aggravating circumstances and none of the mitigating factors indicated in the allegations to the Initiation Agreement, and without considering that we are dealing with a specific and exceptional case, in addition to what has already been responded to regarding this in the previous Legal Basis, the following is noted.

As established in Article 83 of the GDPR, each supervisory authority must ensure that the fines imposed are effective, proportionate, and dissuasive in each individual case. Therefore, the amount of the fine is determined by considering all the circumstances of the case, verifying that the amount of the fine is proportional both to the severity of the infringement and to the size of the company to which the entity that committed the infringement belongs, and that the imposed fine does not exceed what is necessary to achieve the objectives pursued by the GDPR.

Regarding the infringing conduct, the GDPR does not provide for a minimum fine; it only provides for

maximum amounts in Article 83, paragraphs 4 to 6, which group various types of different conduct. In this regard, it is noted that the infringement

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It is determined that this is classified under Article 83.5 of the GDPR, thus falling within the set of more serious infringements that carry a higher sanctioning range. Furthermore, the severity of the infringement must be noted in accordance with Article 83.2.a), due to its nature, given the protected interests and its place within the framework of data protection. By failing to provide an adequate response to the information request made, the investigative powers granted to the supervisory authorities by the GDPR are disobeyed, thereby obstructing the control function assigned to them by the GDPR, preventing the effective application of the GDPR and the achievement of its objectives. Additionally, the company's turnover, as evidenced in the facts of the initiation agreement of this procedure, is taken into consideration as a relevant element for imposing an effective, deterrent, and proportionate fine, in accordance with Article 83, paragraph 1, of the GDPR.

In this same vein, jurisprudence speaks to the principle of proportionality, a principle "fundamental that underlies and governs the process of scaling sanctions and implies, in legal terms, 'its adequacy to the severity of the constitutive fact of the infringement' as provided in Article 29.3 of Law 40/2015, on the Legal Regime of the Public Sector, given that every sanction must be determined in accordance with the entity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the fact." (Supreme Court Judgments of December 3, 2008 (rec. 6602/2004) and April 12, 2012 (rec. 5149/2009) and Judgment of the National Court of May 5, 2021 (rec. 1437/2020), among others).

Thus, the Judgment of the Third Chamber of the Supreme Court, dated May 27, 2003 (rec. 3725/1999), indicates that "Proportionality, specifically belonging to the realm of sanctions, constitutes one of the principles that govern in Administrative Sanctioning Law, and represents a control instrument for the exercise of the sanctioning power by the Administration within, even, the margins that the applicable norm indicates for such exercise. It certainly implies a concept that is difficult to determine a priori, but which tends to adjust the sanction, by establishing its specific scaling within the indicated possible margins, to the severity of the constitutive fact of the infringement, both in its aspect of unlawfulness and culpability, weighing in its entirety the objective and subjective circumstances that make up the sanctionable factual presumption (...)"

We can also cite for this purpose the Judgment of the Supreme Court 713/2019, of May 29 (rec. 1857/2018): "We will begin by noting that the proportionality of sanctions implies that they are tempered to the particularized severity of the fact in conjunction with the subjective (referring to the infringer) and objective (referring to the typical fact) circumstances, given that in the field of administrative sanctioning law in general and in the area of the stock market in particular, there are no dosimetry criteria similar to those set out in Article 66 of the Penal Code and that the modifying circumstances differ from those in the criminal sphere. Let us remember that the automatic application, without any nuance, of the informing principles of criminal law to the administrative sanctioning procedure is not admissible (S.TS 6-10-2003 Rec.772/1998)."

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The Guidelines 04/2022 of the European Data Protection Committee regarding the calculation of administrative fines under the GDPR, in their version of May 12, 2022, submitted for public consultation, indicate that "Regarding the assessment of these elements, increases or decreases in a fine cannot be predetermined through tables or percentages. It is reiterated that the actual quantification of the fine will depend on all the elements gathered during the investigation and other

considerations related also to the previous experiences of the supervisory authority regarding fines.” In application of all the above, the Agreement to initiate the present sanctioning procedure duly indicated and specified the circumstances that were taken into account for the provisional quantification of the sanction as a whole, which was duly justified.

Regarding the aggravating factor of “the evident link between the business activity of the defendant and the processing of personal data of clients or third parties,” TELEFÓNICA asserts that this aggravating factor cannot be considered to apply, to the extent that, it says, there has been no lack of attention or obstruction of the investigative powers of the Agency.

Although this justification is not shared, for all the reasons repeatedly stated, this Agency understands that the aforementioned aggravating factor should not apply to this specific case, as what is being attributed to TELEFÓNICA is the lack of an adequate response to the information requests made, which do not relate, per se, and in this specific case, to the processing of personal data that it ordinarily carries out, nor do they affect the severity of the infringement. We do not find, as in other cases, an infringement of the GDPR in relation to certain activities of processing, where the link of the offender with the activity carried out has an impact on the grading. Therefore, this circumstance should no longer be considered as an aggravating factor and its corresponding impact on the proposed fine should be eliminated. And all this does not imply a change of criterion from that ordinarily maintained by this Agency, but rather an adaptation of it to the concurrent circumstances in the specific case examined, to the established facts, and to the infringement committed.

With respect to the mitigating factor of “adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,” it should be noted that although, as indicated on the website of this Agency, Codes of Conduct will be taken into account for the determination of sanctions, it is necessary to evaluate each specific case.

In this regard, the aforementioned Guidelines 04/2022 on the calculation of fines under the GDPR state that “105. As recalled in the Guidelines WP253, adherence to codes of conduct in accordance with Article 40 of the GDPR or to approved certification mechanisms in accordance with Article 42 of the GDPR may, under certain circumstances, constitute a mitigating factor.”

However, in these same Guidelines, it is pointed out that “106. On the other hand, if the non-compliance with the codes of conduct or certification is directly relevant...”

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For the infringement, the control authority may consider this to be an aggravating circumstance.”

Therefore, it can be concluded that, for adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42 to be used as a mitigating factor, in the same sense, adherence to a code of conduct must be directly relevant to the infringement, which, as already stated in the previous Foundation, does not occur in the present procedure.

Finally, it is clarified that this Agency has not considered the absence of benefits obtained from the infringement as a mitigating factor, as TELEFÓNICA intended, which does not mean that it has been taken as an aggravating circumstance.

In light of all the above, the request from TELEFÓNICA regarding the non-existence of liability and the filing of this sanctioning file cannot be granted, nor can the reduction of the initially proposed sanction based on the indicated mitigating factors. It is deemed appropriate to cease applying the aggravating factor of Article 76.2.b) of the LOPDGDD in accordance with the provisions of Article 83.2.k) of the GDPR, due to “the evident link between the business activity of the defendant and the processing of personal data of clients or third parties,” and, therefore, its corresponding impact on the sanction is eliminated, reducing the proposed amount.

Regarding the assertion of the appellant that the principle of legality is being violated, since their conduct, they say, “is not subsumable under any of the provisions whose infringement is imputed” according to the “meanings of the Royal Spanish Academy of Language” of the words “facilitate” and “resistance or obstruction” as stated in letters ñ) and o) of Article 72.1 of the LOPDGDD, it is relevant

to note that infringements in the field of data protection are classified in sections 4, 5, and 6 of Article 83 of the GDPR. It is a classification by reference, fully accepted by our Constitutional Court. In this sense, Article 71 of the LOPDGDD also refers to them by stating that "Acts and conduct referred to in sections 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

In this regard, the Opinion of the Council of State dated October 26, 2017, regarding the Draft Organic Law on the Protection of Personal Data states that "The European Regulation does classify, even if it does so in a generic sense, the behaviors constituting an infringement: indeed, sections 4, 5, and 6 of its Article 83 contain a catalog of infringements for violation of the provisions of the European norm indicated in such sections. Article 72 of the Draft assumes, not in vain, the existence of such a catalog when it states that 'acts and conduct that constitute a violation of the content of sections 4, 5, and 6 of the European Regulation and of this organic law constitute infringements.'"

The infringements established in Articles 72, 73, and 74 of the LOPDGDD are only for the purposes of prescription, as stated at the beginning of each of these provisions. This necessity arose in our State since there is no provision in the GDPR.

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any reference to the statute of limitations regarding violations, given that this legal institution is not common to all EU Member States.

Therefore, the allegations made by bringing up that "the conduct carried out by Telefónica is not subsumable under any of the provisions whose violation is imputed" in light of the wording of Article 72 of the LOPDGDD cannot be considered, as such provision only qualifies violations for the purposes of the statute of limitations and not in relation to what constitutes the typical action.

Regarding the appellant's assertion that this Agency at no time motivated the administrative act by which it was requesting the information against, it states, Article 35 of the LPACAP and Article 52.3 of the LOPDGDD, the following should be noted.

Article 35 of the LPACAP, which outlines the administrative acts for which motivation is necessary and mandatory, does not refer to information requests.

As for paragraph 3 of Article 52 of the LOPDGDD, this is an exceptional ("When identification could not be carried out by other means") and delimited section, both in the conduct contrary to the regulations ("it has been carried out using an information society service or through electronic communication") and in the data that may be collected under this section, to which the legislator has granted greater protection and thus a special requirement to justify its necessity ("a) When the conduct has been carried out using a fixed or mobile telephone service:

1. The originating phone number of the call in case it has been hidden.
2. The name, identification document number, and address of the subscriber or registered user to whom that phone number belongs.
3. The mere confirmation that a specific call has been made between two numbers on a certain date and time.").

This section is not applicable in any of its terms to the current case, nor is it invoked at any time in the information requests. Also, due to its exceptional nature, the requirements detailed therein cannot be extended to any other request or information requirement.

Furthermore, the information requests that were sent to you briefly outline the facts ("as a result of having received charges in your CAIXABANK bank account related to invoices from TELEFONICA DE ESPAÑA, S.A.U. belonging to the company SERVIGUIT SERVICIOS 1970, S.L"), as well as the legal grounds that legitimize the order given ("in exercise of the powers conferred by Article 58.1 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter GDPR), and Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and

guarantee of digital rights (hereinafter LOPDGDD)").

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For all these reasons, the allegations in this regard are not shared and must be rejected.

The information requests, in which information was requested under the powers conferred by Article 58.1 of the GDPR and Article 67 of the LOPDGDD, are lawful.

Regarding the assertion of the appellant that it cannot be reproached "for causing the process to be prolonged in order to influence the filing of the proceedings of case EXP202205067, due to the expiration of the limitation periods stipulated in the LPDGDD without obtaining results," since it states, "despite this party justifying its refusal to provide certain information related to the legal entity, seven months of inactivity passed between the initial information requests and the subsequent ones," it is emphasized that the appellant justified its inability to provide the requested information after the resolution of the filing of the proceedings of case EXP202205067. As for the information requests, it is reiterated that all of them were notified prior to the filing of the investigation proceedings of said case EXP202205067, a filing in which the incomplete responses given to the requests significantly influenced, which did not allow for knowing that the appellant did not have the requested information, which, on the other hand, was very clear and left no room for doubt: whether the respondent had provided the account number of the claimant to debit the charges resulting from their telephone contract. This lack of clarity from the appellant in its responses caused the need for successive reiterations of the requests, resulting in a detriment to the inspection work. In this regard, the basis IV of the resolution of the filing of case EXP202205067 states the following:

"During the preliminary investigation proceedings, information on this matter has been repeatedly requested from the telecommunications operator TELEFÓNICA DE ESPAÑA S.A., which has not provided all the required information regarding whether the respondent was the one who at the time would have provided the account number of the claimant. Without prejudice to the responsibility that may correspond to this company, this has resulted in a lack of information about who and through what means, carried out the direct debit (...)"

Regarding the statement of the appellant that the sanctioning Resolution lacks motivation and is arbitrary, it states, for not indicating the criteria followed to determine the amount of the final sanction nor why the aggravating factor discarded only accounts for 10% of the total initial proposed sanction, it is appropriate to recall that in the sanctioning procedure, the circumstances that were taken into account for the quantification of the sanction as a whole were duly indicated and explained, leaving it properly motivated. Despite the legitimate disagreement with this argument, it provides the appellant with the necessary knowledge to assess the legal correctness or incorrectness of the act for the purposes of exercising the actions of challenge that the legal system establishes and adequately articulating its means of defense.

In relation to the mitigating factors, in addition to what has already been stated in the contested Resolution and regarding the comment of the appellant that "if we take into account the reasoning of the Agency for not appreciating the aggravating factor related to the massive...

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the treatment of personal data, it cannot be ruled out that these mitigating factors apply," it is worth reiterating that this Agency understands that the aforementioned aggravating factor should not be applicable to this specific case since we are not dealing, as in other cases, with a violation of the GDPR in relation to certain activities of a treatment, where the link of the offender with the activity carried out has an impact on the grading. That said, the non-application of the aforementioned aggravating factor in this specific case, for the reasons stated, does not mean that it is also not considered as a mitigating factor nor does it, per se, obligate the application of other mitigating factors. Finally, regarding the statement made by the appellant that the "sanctioning Resolution must be declared null and void for violating the provisions of arts. 47.1 a) and e) and 47.2 of Law 39/2015," it is appropriate to conclude, first of all, regarding the provisions of art. 47.1 a) and e), that in light of the

reasoning put forth by this Agency, there is no radical nullity of the sanctioning resolution, as there has been no infringement of any constitutional rights or freedoms, nor has there been any disregard at any time for the legally established procedure. As for the reference made to art. 47.2, the appellant has not explicitly stated at any time which administrative provision the action for nullity is directed against. Thus, it is recalled that art. 47.2 of the LPACAP refers to administrative provisions against which this request for nullity must be directed. Moreover, the article requires “that they violate the Constitution, the laws, or other higher-ranking administrative provisions, those regulating matters reserved for the Law, and those establishing the retroactivity of unfavorable sanctioning provisions or restrictions on individual rights.”

Therefore, this request is not appropriate.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by TELEFÓNICA DE ESPAÑA, S.A.U.

against the resolution of this Spanish Agency for Data Protection issued on February 23, 2024, in file EXP202309301.

SECOND: TO NOTIFY this resolution to TELEFÓNICA DE ESPAÑA, S.A.U.

THIRD: To warn the sanctioned party that the imposed sanction must be fulfilled once this resolution is notified, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment into the restricted account no. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of art. 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

180-21112023

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